

PCU331903 In the Matter of Orey, Michael Paul

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-07-07

Motion: Motion to Compel Arbitration

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Re: In the Matter of Orey, Michael Paul

Case No.: PCU331903

Date: July 7, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Motion to Compel Arbitration

Tentative Ruling: To grant the motion; to modify the proposed order as indicated herein; to set a status conference for July 21, 2026, 8:30 am, Dept. 19, as to the mutual selection of the arbitrator or, alternatively, the joint filing of a list from which the Court will nominate five therefrom pursuant to Code of Civil Procedure section 1281.6.

Background Facts

In this matter, the Court previously granted the petition to obtain a case number, open a file and obtain the jurisdiction of this Court pursuant to Cal. Ins. Code § 11580.2(f)(1) and *Miranda v. 21st Century Ins. Co.* (2004) 117 Cal.App.4th 913, 921-926 in order to arbitrate this underinsured motorist claim.

Facts – Agreement to Arbitrate

Counsel's declaration states that on February 2, 2023 at or near Highway 65 and Hermosa Street, Harvinder Kaur ("Defendant Driver") failed to stop at a red light and collided with a vehicle in which Claimant was a passenger. (Declaration of Russell ¶4.)

On December 10, 2024, Claimant sent Defendant Driver an Insurance Policy Limit Demand Letter. (Declaration of Russell ¶5.)

On or about January 23, 2026, American Family Connect Property and Casualty Insurance Company tendered its entire policy limit in the amount of \$250,000. (Declaration of Russell ¶6.)

However, this amount was insufficient to compensate Claimant and on December 10, 2024, Claimant sent Respondent Nonprofits Insurance Agency an Underinsured Policy Limit Demand Letter. (Declaration of Russell ¶8.)

On February 25, 2026, Claimant sent Respondent a Demand for UIM Arbitration. (Declaration of Russell ¶10.) No response was received from Respondent. (Declaration of Russell ¶11.)

Claimant Orey now seeks to compel arbitration via this motion.

No opposition appears filed.

Authority and Analysis – Agreement to Arbitrate

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.” (Code Civ. Proc. § 1281.2(a), (b).) (emphasis added.)

As noted by Petitioner, underinsured motorist policies must provide for binding arbitration of disputes regarding the insured's right to recover damages and the amount thereof under California Insurance Code section 11580.2(f):

“... The policy or an endorsement added thereto shall provide that the determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration.” (California Insurance Code, § 11580.2(f).)

While no copy of the Policy was provided, the agreement to arbitrate this type of dispute appears to be mandated by law. Therefore, the Court finds an agreement to arbitrate exists between the parties.

As stated above, a party moving to compel arbitration under Code Civil Procedure Section 1281.2 must prove by a preponderance of the evidence that: (1) the parties entered into a written agreement to arbitrate; (2) one or more of the claims at issue are covered by that agreement; and (3) the responding party refused a prior demand for arbitration under the agreement of the claims at issue. (Code Civ. Proc., § 1281.2; Villacreses v. Molinari (2005) 132 Cal.App.4th 1223, 1230.)

Here, the Court has found an agreement to arbitrate via the insurance policy, finds that this underinsured claim is covered under the insurance policy and that Respondent has refused a prior demand for arbitration.

As such, in the absence of any opposition, the Court grants the petition to compel arbitration.

Selection of Arbitrator

Claimant's proposed order states that the parties are ordered to choose an arbitrator within ten (10) days of the hearing on this petition and that if they cannot agree, the Court will appoint the arbitrator.

Code of Civil Procedure section 1281.6 provides the process for selection as follows, in part:

"If the arbitration agreement provides a method of appointing an arbitrator, that method shall be followed. If the arbitration agreement does not provide a method for appointing an arbitrator, the parties to the agreement who seek arbitration and against whom arbitration is sought may agree on a method of appointing an arbitrator and that method shall be followed. In the absence of an agreed method, or if the agreed method fails or for any reason cannot be followed, or when an arbitrator appointed fails to act and his or her successor has not been appointed, the court, on petition of a party to the arbitration agreement, shall appoint the arbitrator.

When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees." (Code Civ. Proc § 1281.6.)

As such, the Court will keep in place a portion of the proposed order that states:

"2. Petitioner MICHAEL PAUL OREY and Respondent NONPROFITS INSURANCE ALLIANCE are hereby ordered to choose an arbitrator within (10) days from the hearing on this Petition."

However, the Court will strike the following from the proposed order:

"3. If Petitioner MICHAEL PAUL OREY and Respondent NONPROFITS INSURANCE ALLIANCE do not agree upon an arbitrator within (10) ten days from the hearing on this Motion, an arbitrator will be appointed by the Court."

The Court will order instead of the above:

"3. If Petitioner MICHAEL PAUL OREY and Respondent NONPROFITS INSURANCE ALLIANCE do not agree upon an arbitrator within (10) ten days from the hearing on this Motion, the parties are ordered to jointly supply a list of arbitrators so that the Court may nominate five from that list pursuant to Code of Civil Procedure section 1281.6."

Therefore, the Court will set a status conference for July 21, 2026, 8:30 am, Dept. 19, as to the mutual selection of the arbitrator or, alternatively, the joint filing of a list from which the Court will nominate five therefrom.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.